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Tentative Ruling

Sandra K. Neal, et al. v. U.C.L.A. Health Systems, et al., Case No. 24SMCV05811

Defendant's Motion to Deem RFAs Admitted

Hearing Date: September 10, 2026

Background

Plaintiffs Sandra K. Neal and Don Ford sue Defendants U.C.L.A. Health System; U.C.L.A. Santa Monica Hospital, Christian Alfaro, and the State of California for negligence, medical malpractice, and premises liability. Plaintiffs allege that Neal was injured when Defendants negligently transported her from the hospital to a car and failed to assist her when she was getting into the car, causing her to fall and break her femur. (Complaint, ¶ 15.)

On November 27, 2024, Plaintiffs filed the complaint.

On March 30, 2026, Defendants Christian Alfaro and the Regents of the University of California (for the purposes of this motion, "Defendants") filed this Motion to Deem RFAs Admitted. As of September 7, 2026, the Court has not received opposition.

Motion to Deem Requests for Admission, Set One, Admitted

"Any party may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties."¿ (Code Civ. Proc., § 2033.010.)¿ "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared"¿ (Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).)

The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Here, Defendants served the Requests for Admission, Set One, on Neal on August 21, 2025. (Tomlinson Declaration, ¶ 3.) On September 22, 2025, Defendants requested full and complete responses without objections by October 7, 2025. (Id. at ¶ 6.) The parties ultimately extended the response deadline to February 17, 2026. (Id. at ¶ 12.) As of the filing of this motion, Neal has not responded. (Id. at ¶ 13.) Neal has not filed an opposition indicating that that he has produced responsive discovery since this motion was filed.

The Court GRANTS Defendants' motion to deem RFAs admitted.

Sanctions

Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court R. 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

Defendants request attorneys' fees and the \$60.00 filing fee for this motion as sanctions. Defendants' counsel bills it at a rate of \$255 per hour. (Tomlinson Decl., ¶ 14.) Counsel's rate is reasonable. Defendants' Counsel spent three hours preparing this motion and requests another three and a half hours for drafting a reply and attending the hearing. Three hours for preparing this motion is reasonable. Three hours to draft the motion is reasonable, but there was no opposition and no reply, so the Court awards three hours for the motion and one for attending the hearing. Accordingly, the Court GRANTS Defendants \$1,080 ($\$255 \times 4 + \60) in sanctions.

Conclusion

Defendants' Motion to Deem RFAs Admitted is GRANTED. Defendants are awarded \$1,080 in sanctions.